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California - Summertime blues over bad bills out of Sacramento

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The California Legislature continues raining down on us hundreds of bills we don't need.

Here are four, all signed into law by Gov. Gavin Newsom.

Last year the Legislature passed Senate Bill 478, by state Sen. Bill Dodd, R-Napa. It banned charges revealed only when you get the bill from restaurants, lodging, event ticket sellers, etc.

This year Senate Bill 1524, also by Dodd, modified SB 478 to allow such fees at restaurants, provided the levies are disclosed on menus and other displays. It passed unanimously in both the Senate and Assembly. Matthew Sutton, senior legislative director at the California Restaurant Association, backed the bill because "consumers will remain empowered to make informed choices about where they choose to dine out."

I find these charges as annoying as everybody. But the last thing we need is more busybody bills. There already was a remedy: Tell the manager you don't like the hidden fees and won't return until they're removed.

The Republican brand ought to be opposing all new taxes and regulations, not sponsoring them. They also lost an opportunity to blame the inflation sparking these fees on Democrats.

Assembly Bill 1013, by Assemblyman Josh Lowenthal, D-Long Beach, was passed last year and went into effect on July 1. It makes bars and clubs sell "drug testing devices" to detect such "date rape" drugs as "flunitrazepam, ketamine, and gamma hydroxybutyric acid." And the establishments must post conspicuous signs with this exact wording: "Don't get roofied! Drink spiking drug test kits available here. Ask a staff member for details."

This one effectively turns bartenders into FDA experts giving "details" on these devices. Expect lawsuits.

California Penal Code Section 261(a)(3) already defines rape as including: "Where a person is prevented from resisting by any intoxicating or anesthetic substance, or any controlled substance, and this condition was known, or reasonably should have been known by the accused."

Alcohol, the main reason for going to a bar, also is an "intoxicating or anesthetic substance." It's use in this state is banned to those under 21. Anyone going into a bar legally is an adult who ought to know what he or she is doing. Such persons also can purchase "drug testing devices" on their own.

Do we have to nanny everybody?

Next come two anti-gun bills passed last year, but which went into effect July 1 this year — three days before Independence Day, when our freedom was won by guns in 1776.

Assembly Bill 1587 was by Assemblymember Phil Ting, D-San Francisco. It requires credit card companies to "make the merchant category code for firearms and ammunition businesses." That easily would let the government know who has guns, making legal weapons easy to seize. Criminals would not be affected because they buy guns with cash in the black market.

Assembly Bill 28 is by Assembly Member Jesse Gabriel, D-Encino. It imposes a 11% extra tax on guns and ammo — on top of the state sales tax of 7.25%, plus any local sales taxes.

Both arrive after three major U.S. Supreme Court decisions. In the 2022 Bruen decision, the court reaffirmed and strengthened the 2008 Heller decision upholding a personal “right to keep and bear arms” under the Second Amendment. Last month in the Cargill case, the court struck down a ban on “bump stocks,” which make it easier to fire a rifle rapidly.

And in the Rahimi case, the court allowed guns to be prohibited to a person in which a restraining order either contains “a finding” that the defendant is a credible threat to a partner or child; or has “threatened” the use of physical force against them.

In sum, unless there’s a direct physical threat affirmed by a court, the Supreme Court has been upholding strong Second Amendment protections. The two new bills likely will be shot down. In California, federal Judge Roger Benitez of San Diego especially has been vigilant in tossing California laws violating the Second Amendment.

At least we get a little relief as the Legislature is in recess until August.

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